

Cybercrime and Punishment

Since the internet began for public use, vulnerabilities immediately began to surface that introduced a decades long field of opportunities for hackers and criminals alike. In this day and age, we see and hear about cybercrimes almost on a weekly basis if you have your ears in the right direction. We hear of hacks, ransomware attacks, data breaches, phishing, spearphishing, etc. Now what is the severity of punishment for those who commit these acts, and is there a level of severity of punishment for each act specifically? And what should be done with repeat offenders who keep committing such attacks? Before we answer those questions, let's look at some stats of what crimes have actually been committed in recent years. According to the United States Sentencing Commission, through the years of 2014-2021 there was a massive spike in cybercrimes involving the dark web and cryptocurrency versus hacking, with 287 cases of dark web cybercrimes, 241 cases of cryptocurrency cybercrimes, and an outlying number of 74 cases of hacking cybercrimes (United States Sentencing Commission, September 18, 2024). Out those 602 cases listed 28.9% of the offenses were involving child pornography, 27.5% involved fraud, 20.6% involved drug trafficking, and 8.9% involved money laundering (United States Sentencing Commission, September 18, 2024).

So what is the punishment for these types of cybercrimes? Punishment obviously varies on the severity of the crime and depends on state and federal laws being broken. If a criminal attacks an organization, federal agency, or has multiple victims the crimes

tend to fall into federal jurisdiction. Federal crimes almost always end with prison time versus fines and probation like it is on a State level. Prison time for cybercrimes could look like 1-10 years to even life imprisonment. For those who are repeat offenders who commit crimes on a Federal level under the Computer Fraud and Abuse Act (CFAA) for example, face an increase in fines and doubled prison time. If this criminal was sentenced to 10 years and given a \$125,000 fine for their first offense, their second offense would more than likely end up with a 20 year sentencing and \$250,000 fine. These guidelines and protocols are also followed on the State level for repeat offenders. States like California and New York also follow the procedure of increasing penalties for repeat offenders that can lead a constant offender to eventually get life in prison or lose technology privileges for life or monitored supervision from the state on their devices. Unfortunately, not every state is as strict as others for cybercrimes. Iowa, for example, only has a 3 year prison time for repeat offenders. While state legislation has been currently in efforts to pass a bill that has a minimum 20 year sentencing for repeat offenders of cybercrimes, this is still being voted on in their government (WHO13, 2026).

In conclusion, there are rising punishments for cybercrimes. While many crimes do go unnoticed, those who are caught and tried in court, the outcome really boils down to the state that the crime was committed in and if the crimes committed lie within a state or federal level. Some states are more lenient than others on scales of punishment but for cases like Iowa, there is current legislation for states alike to have harsher punishments for those who are repeat offenders. We will soon see criminals get punished correctly for their wrong doings in the world of cyber.

Work Cited

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